

ATTORNEY OR PARTY WITHOUT ATTORNEY (Name, State Bar number, and address): Paul Andrew 3020 BRIDGEWAY Sausalito CA 94965 TELEPHONE NO.: (650) 646-1925 FAX NO. (Optional): E-MAIL ADDRESS (Optional): Paul@innitstreetwear.com ATTORNEY FOR (Name): Self-Representing		To keep other people from seeing what you entered on your form, please press the Clear This Form button at the end of the form when finished.
SUPERIOR COURT OF CALIFORNIA, COUNTY OF Merced STREET ADDRESS: 627 W 21st St MAILING ADDRESS: Merced CA 95340 CITY AND ZIP CODE: Merced County Superior Court BRANCH NAME:		
PLAINTIFF/PETITIONER: Paul Andrew DEFENDANT/RESPONDENT: ACME INC -		
DECLARATION		CASE NUMBER:

Declaration of Paul Andrew in Support of Claim

****MC-030 DECLARATION**** 1. My name is Paul Andrew. I am the plaintiff in this case and I am self-represented. 2. On April 1, 2026, I took my 2021 Mercedes-Benz CLA (VIN W1K5J4GB7MN123456) to ACME Auto Repair for a diagnosis and engine repair to fix an engine "lifter noise." 3. ACME Auto Repair assured me verbally and in writing that their diagnosis and engine work would resolve the lifter noise. 4. On April 1, 2026, ACME Auto Repair informed me that the work was completed, charged me \$5,000.00, and released the vehicle to me. 5. I paid the \$5,000.00 invoice in full by check number 1842, which cleared on April 1, 2026. 6. Immediately after leaving ACME Auto Repair, I noticed that the same engine lifter noise was still present. 7. About two hours later, I returned to ACME Auto Repair and brought a witness, Janey Do Do, to confirm that the noise was still present. 8. I informed ACME Auto Repair that the original engine issue had not been resolved and requested that they complete the necessary repairs or refund my payment. 9. ACME Auto Repair refused to perform additional repairs and also refused to refund the \$5,000.00 I had paid. 10. On April 2, 2026, I emailed ACME Auto Repair again, reiterating my request for them to honor their 30-day repair warranty or provide a full refund. I received no response or resolution from ACME Auto Repair. 11. I am seeking \$5,000.00 in damages, the full amount I paid for the diagnosis and repair work that did not resolve the agreed-upon issue of the engine lifter noise. 12. The amount sought is based on the terms of the invoice and contract, my check payment, and ACME Auto Repair's written repair warranty, which they failed to honor. 13. Civil Code § 1605 applies because I provided \$5,000.00 in consideration, satisfying my obligation, while ACME Auto Repair failed to deliver the benefit of repairing the engine noise as promised. 14. Civil Code § 3287 applies because the debt of \$5,000.00 became due when ACME Auto Repair refused to resolve the issue on April 1, 2026, making the damages certain in amount. 15. Civil Code § 3289 applies because no interest rate was specified in the contract, and I am entitled to accrue interest at the statutory rate of 10% per annum, starting April 1, 2026. 16. I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct, and that this declaration was executed on April 24, 2026, in Sausalito, California. ****Paul Andrew**** [Signature line] Paul Andrew

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Date: 04/24/2026

Paul Andrew

(TYPE OR PRINT NAME)

(SIGNATURE OF DECLARANT)

☐ Attorney for ☐ Plaintiff ☐ Petitioner ☐ Defendant
☐ Respondent ☐ Other (Specify):